IT is hereby notified that the Minister of Finance and Economic Development has, in terms of section 235 of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

1. These regulations may be cited as the Customs and Excise (General) (Amendment) Regulations, 2021 (No. 103).

2. The Customs and Excise (General) Regulations, 2001, published in Statutory Instrument 154 of 2001 (hereinafter called "the principal regulations"), are amended with effect from 1st December, 2020, in section 140 *("Rebate of duty on goods imported temporarily for an approved project")*—

(a) by the deletion of subsection (1) and substitution with the following subsections—

"(1) Subject to this section, and to such other conditions or restrictions as the Commissioner may in each case determine, a rebate of duty may be granted on such goods which are certified by the Secretary of the responsible Ministry and as the Commissioner may approve, but excluding goods intended for consumption in Zimbabwe, when such goods are temporarily imported by contractors or other persons for completion of such Public Sector Investment Programme Projects. The Minister shall be responsible for granting the approved project status for the Public Sector Investment Programme Projects.".

(2) Any person wishing to be granted a rebate in terms of this section shall make an application to the Commissioner, giving details of—

(a) the goods referred to in subsection (1) on which a rebate is sought; and

(b) the purpose for which the goods are to be used; and



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(c) the date on which the project will be completed, which will not exceed five years; and

(d) the date on which the goods are to be re-exported; and

(e) submission of completed feasibility studies endorsed by the responsible Ministry; and

(f) proof of funding for the project; and

(g) evidence of the physical place of business where the project will be undertaken; and

(h) compliance with—

(i) the requisite regulatory requirements for the nature of the project; and

(ii) local authority by-laws or regulations.";

(b) by the insertion of the following new subsections after subsection 6—

"(7) In the case of an application for extension of a rebate previously granted in terms of this section, details and proof of utilisation of previous concessions granted under the approved project. The proof shall be in the manner, form and to the extent requested by the Minister.".

3. The principal regulations are amended in section 141 *("Rebate of Duty on goods for incorporation in the construction of approved projects") —*

(a) by the deletion of the subsection (1) and substitution with the following—

"(1) Subject to this section and with effect from 1st December, 2020, a rebate of duty shall be

granted on goods which are certified by the Secretary of the responsible Ministry and the Commissioner, to be components or materials for incorporation in the construction of Public Sector Investment Programme Projects. The Minister shall be responsible for granting the approved project status for the Public Sector Investment Programme Projects.";

(b) by the insertion after subsection (4) of the following subsections—

"(5) A project may be granted a rebate in terms of this section subject to the fulfilment of the following additional conditions—

(a) submission of completed feasibility studies endorsed by the responsible Ministry;

(b) proof of funding for the project;

(c) evidence of the physical place of business where the project will be undertaken;

(d) compliance with—

(i) the requisite regulatory requirements for the nature of the project; and

(ii) local authority by-laws or regulations.

(6) In the case of an application for extension of a rebate previously granted in terms of this section, details and proof of utilisation of previous concessions granted under the approved project. The proof shall be in the manner, form and to the extent requested by the Minister.".